

cited together as the Industrial and Provident Societies Acts, 1893 to 1913.

(2) This Act shall be construed as one with the Industrial and Provident Societies Act, 1893, and shall come into operation on the first day of January nineteen hundred and fourteen.

(3) The principal Act is hereby repealed to the extent specified in the third column of the Schedule to this Act.

SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
56 & 57 Vict. c. 39.	The Industrial and Provident Societies Act, 1893.	Subsection (1) of section thirteen. In section fourteen, paragraph (c) of subsection (2), and all the words from "and if by any persons" to the end of the section. Section twenty-five, except as respects nominations made before the commencement of this Act. Section twenty-six. Subsection (1) of section twenty-seven, from "subject" to the end of the subsection. Section twenty-eight. In section twenty-nine, the words "not exceeding one hundred pounds." Section sixty-two. In section seventy-two the words "but the employment of such auditors shall not be compulsory."

CHAPTER 32.

An Act to consolidate and amend the Law relating to Ancient Monuments and for other purposes in connection therewith. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

ACQUISITION OF ANCIENT MONUMENTS.

1.—(1) The Commissioners of Works may, with the consent of the Treasury, purchase by agreement, out of any moneys which may be provided by Parliament for that purpose, any monument which appears to them to be an ancient monument within the meaning of this Act.

Purchase of
ancient monu-
ments by
agreement.

(2) Any local authority within the meaning of this Act may, if they think fit, purchase by agreement any monument situate in or in the vicinity of their area, which appears to them to be an ancient monument within the meaning of this Act.

(3) For the purpose of any such purchase, the Lands Clauses Acts shall be incorporated with this Act (with the exception of the provisions which relate to the purchase and taking of lands otherwise than by agreement), and, in construing those Acts for the purposes of this Act, this Act shall be deemed to be the special Act, and the Commissioners of Works or local authority, as the case may be, shall be deemed to be the promoters of the undertaking.

2. Any person may, by deed or will, give, devise, or bequeath to the Commissioners of Works or to a local authority all such estate or interest in any ancient monument as he may be seised or possessed of, and the Commissioners or authority may accept any such gift, devise or bequest if they think it expedient to do so.

Gift, devise,
or bequest of
ancient monu-
ments to Com-
missioners of
Works.

PART II.

GUARDIANSHIP OF ANCIENT MONUMENTS.

3.—(1) The owner of any monument which appears to the Commissioners of Works to be an ancient monument within the meaning of this Act may, with the consent of the Commissioners, constitute them by deed guardians of the monument.

Power to con-
stitute com-
missioners of
Works guar-
dians of
ancient monu-
ments.

(2) The owner of any monument which appears to a local authority to be an ancient monument within the meaning of this Act, and is situate in or in the vicinity of their area may, with the consent of the local authority, constitute them by deed guardians of the monument:

Provided that the Commissioners of Works or the local authority, as the case may be, shall not consent to become guardians of any structure which is occupied as a dwelling-house by any person other than a person employed as the caretaker thereof or his family.

(3) Every person deriving title to any monument from, through, or under any owner who has constituted the Commissioners of Works or a local authority guardians of the monument under this section shall be bound by the deed executed by the owner for that purpose, and, where the owner

of any land being the site of a monument is a tenant for life or in tail, or heir of entail in possession in Scotland, having a power of sale of the land either under the terms of a will or settlement or under any Act of Parliament, the deed executed by the owner in respect of the site of which he is so tenant for life or in tail or heir of entail in possession shall bind every successive owner of any estate or interest in the land, and the execution of any such deed by the tenant for life or in tail or heir of entail in possession shall not render him subject to any liability on account of any depreciation of property attributable thereto.

(4) Where the site of a monument is, at the time of the execution of the deed, subject to any incumbrance not capable of being over-reached by the tenant for life under the powers conferred on him by the Settled Land Acts, 1882 to 1890, or by the instrument creating the settlement, the deed shall not bind the incumbrancer.

(5) Except as provided by this Act, the owner of a monument, of which the Commissioners of Works or a local authority become guardians under this Act, shall have the same right and title to, and estate and interest in, the monument in all respects as if the Commissioners or local authority, as the case may be, had not become guardians thereof.

Effect of becoming guardians of ancient monuments.

4.—(1) Where the Commissioners of Works or a local authority become guardians of any ancient monument under this Act, they shall, until they receive notice in writing to the contrary from any owner of the monument who is not bound by the deed constituting them guardians of the monument, maintain the monument, and shall, with a view to the maintenance of the monument, have access by themselves, their inspectors, agents, or workmen to the monument for the purpose of inspecting it, and of bringing such materials and doing such acts and things as may be required for the maintenance thereof.

(2) All expenses incurred by the Commissioners of Works in maintaining the monument shall, subject to the approval of the Treasury, be defrayed out of moneys provided by Parliament.

(3) The expression "maintenance" in this section includes the fencing, repairing, and covering in, of a monument and the doing of any other act or thing which may be required for the purpose of repairing the monument or protecting it from decay or injury, and the expression "maintain" shall be construed accordingly.

Description of owners for purposes of Part II.

5.—(1) The following persons shall be deemed to be owners of monuments for the purposes of this Part of this Act, that is to say :—

(a) Any person entitled for an estate in fee to the possession or receipt of the rents and profits of any freehold or copyhold land :

- (b) Any person absolutely entitled in possession to a beneficial lease of land of which not less than forty-five years are unexpired, but no lease shall be deemed to be a beneficial lease within the meaning of this section if the rent reserved thereby exceeds one third part of the full annual value of the land demised by the lease :
- (c) Any person entitled under any existing or future settlement for the term of his own life, or the life of any other person, to the possession or receipt of the rents and profits of land of any tenure, in which the estate for the time being subject to the trusts of the settlement is an estate for lives or years renewable for ever, or an estate renewable for a term of not less than sixty years, or an estate for a term of years of which not less than sixty are unexpired, or any greater estate :
- (d) Any body corporate, any corporation sole, any trustees for charities, and any commissioners or trustees for ecclesiastical, collegiate, or other public purposes, entitled, in the case of freehold or copyhold land, in fee, and in the case of leasehold land, to a lease for an unexpired term of not less than sixty years.

(2) Where any person who, by virtue of this section, is to be deemed the owner of a monument is a minor, or of unsound mind, the guardian or committee, or, in Scotland, the tutor or curator, as the case may be, of that person shall be the owner for the purposes of this Part of this Act, and, where such owner is a married woman, she shall have power to execute a deed constituting the Commissioners of Works or a local authority guardians notwithstanding that she is restrained from anticipation.

(3) In this section the expression "entitled" means beneficially entitled ; and the expression "land" means land which is the site of an ancient monument, whether the land is or is not subject to incumbrances.

PART III.

PROTECTION OF ANCIENT MONUMENTS.

6.—(1) If the Ancient Monuments Board constituted under this Act report to the Commissioners of Works that any monument is in danger of destruction or removal or damage from neglect or injudicious treatment, and that the preservation of the monument is of national importance, the Commissioners may, if they think fit, and if it appears to them that the monument is an ancient monument within the meaning of this Act, make an order (in this Act referred to as a Preservation Order) placing the monument under the protection of the Commissioners :

Orders placing
ancient monu-
ments under
protection of
Commissioners
of Works.

Provided that, if in any case the Commissioners of Works consider that the making of such an order is a matter of immediate urgency, the Commissioners may make the order without receiving any such report as aforesaid.

(2) Where the ancient Monuments Board have reason to believe that any monument is in danger as aforesaid, and that the preservation of the monument is of national importance, they may themselves, or by any person authorised in writing by them, enter at any reasonable time upon any premises for the purpose of enabling them to determine by inspection of the monument whether it is proper for them to report to the Commissioners:

Provided that, unless the Ancient Monuments Board consider that the inspection of the monument is a matter of immediate urgency, they shall give not less than seven clear days' notice to the occupier of the premises of their intention so to enter upon them.

(3) A Preservation Order shall have effect for a period of eighteen months after the date on which it is made, but on the expiration of that period shall cease to have effect unless it has been confirmed by Parliament; and, if a Preservation Order so made is not confirmed by Parliament within a period of eighteen months, no further Preservation Order shall be made with reference to the same monument until after the expiration of five years from the date on which the Order which has ceased to have effect was made.

(4) The Commissioners of Works may bring in a Bill for confirming any Preservation Order, and if, while the Bill confirming any such Order is pending in either House of Parliament, a petition is presented against the Order, the Bill, so far as it relates to the Order, may be referred to a select committee or, if the two Houses of Parliament think fit so to order, to a joint committee of those Houses, and the petitioner shall be allowed to appear and oppose as in the case of a private Bill.

(5) Where a Committee on a Bill for confirming any Preservation Order report by a majority of the members for the time being present and voting that a petitioner against the Bill has been unreasonably subjected to expense, or has been subjected to an unreasonable amount of expense in defending his rights proposed to be interfered with by the Bill, they may award costs against the Commissioners of Works and any costs under this section may be taxed and recovered in accordance with the Parliamentary Costs Act, 1865.

28 & 29 Vict.
c. 27.

Effect of Pre-
servation
Order.

7.—(1) While a Preservation Order is in force, the monument to which the Order relates shall not be demolished or removed, nor shall any additions or alterations be made thereto or any work carried out in connection therewith except with the written consent of the Commissioners of Works.

(2) If, while a Preservation Order is in force, it appears to the Commissioners of Works that owing to the neglect of the

owner of the monument the monument is liable to fall into decay, the Commissioners may, with the consent of the Treasury, make an order constituting themselves guardians of the monument so long as the Preservation Order is in force, and in that case the provisions of this Act shall, during that period, take effect as if the Commissioners had been constituted guardians by virtue of a deed executed by the owner.

Any order made under this subsection may be revoked at any time by the Commissioners.

8. This Part of this Act shall not apply to any structure which appears to the Commissioners of Works to be occupied as a dwelling-house (otherwise than by a person employed as the caretaker thereof or his family).

Saving for buildings used as dwelling-house.

PART IV.

GENERAL.

Supplemental Provisions as to Preservation of Monuments.

9. The Commissioners of Works or any local authority may receive voluntary contributions towards the cost of the maintenance and preservation of any monument of which they may become the owners or guardians under the provisions of this Act, and may enter into any agreement with the owner of any such monument or with any other person as to the maintenance and preservation of the monument and the cost thereof.

Power to receive voluntary contributions for maintenance of ancient monuments.

10. The Commissioners of Works and any local authority may, in respect of any monument of which they are the owners or guardians (but where they are guardians only with the consent of the owner of the monument), enter into and carry into effect any agreements for the transfer from the Commissioners to the local authority, or from the local authority to the Commissioners, or from the local authority to another local authority, of the monument, or of any estate or interest therein, or of the guardianship thereof.

Transfer of ancient monuments between local authorities and Commissioners of Works.

11. Any local authority may, if they think fit, at the request of the owner, undertake or contribute towards the cost of preserving, maintaining, and managing, any monument which appears to them to be an ancient monument and is situate in, or in the vicinity of, their area, whether they have purchased the monument or become guardians of it under this Act or not: Provided that the plans and specification of all works, other than those of immediate necessity, to be undertaken or contributed by the local authority shall be submitted to the Ancient Monuments Board, and the Board, if they object to any plans or specifications, shall report the matter to the Commissioners of Works, whose decision shall be final.

General powers of local authorities with respect to preservation of ancient monuments.

Notice to be,
given by
owners of cer-
tain monu-
ments.

12.—(1) The Commissioners of Works shall from time to time cause to be prepared and published a list containing—

- (a) such monuments as are reported by the Ancient Monuments Board as being monuments the preservation of which is of national importance; and
- (b) such other monuments as the Commissioners think ought to be included in the list;

and the Commissioners shall, when they propose to include a monument in the list, inform the owner of the monument of their intention and of the penalties which may be incurred by a person guilty of an offence under the next succeeding subsection.

(2) Where the owner of any ancient monument which is included in any such list of monuments as aforesaid proposes to demolish or remove in whole or in part, structurally alter, or make additions to, the monument, he shall forthwith give notice of his intention to the Commissioners of Works, and shall not, except in the case of urgent necessity, commence any work of demolition, removal, alteration, or addition for a period of one month after having given such notice; and any person guilty of a contravention of or non-compliance with this provision shall be liable on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both.

(3) This section shall not apply to any structure which is occupied as a dwelling-house by any person other than a person employed as the caretaker thereof or his family.

*Public Access to Monuments and Penalty for Injuring
Monuments.*

Public access
to ancient
monuments.

13. The public shall have access to any monument of which the Commissioners of Works or a local authority are the owners or guardians at such times and under such regulations as may from time to time be prescribed by the Commissioners or local authority:

Provided that—

- (a) this section shall not apply to any monument of which the Commissioners or a local authority have been constituted the guardians before the commencement of this Act, except in cases where the consent of the owner has been given to the public having access to the monument either by the deed constituting the Commissioners or local authority the guardians or otherwise; and
- (b) where the deed constituting the Commissioners or local authority the guardians of the monument, in the case of a deed executed after the commencement of this Act, so provides, the public shall not have access to the monument without the consent of the owner of the monument.

14.—(1) If any person injures or defaces any monument of which the Commissioners of Works or a local authority are the owners or guardians, or which is the subject of a Preservation Order, or to which this section applies by virtue of an Order in Council made thereunder, that person shall, on summary conviction, be liable either to a fine not exceeding five pounds, and, in addition to the fine, to pay such sums as the court by whom he is tried think just for the purpose of repairing any damages caused by him, or to imprisonment with or without hard labour for a term not exceeding one month.

Penalty for
injuring an-
cient monu-
ments.

(2) In England, any person convicted of an offence under this Act may appeal to quarter sessions in manner provided by the Summary Jurisdiction Acts.

(3) The owner of an ancient monument shall not be punishable under this section in respect of any act which he may do to the monument, except in cases where the Commissioners of Works or the local authority have been constituted guardians of the monument, and in that case he may be dealt with as if he were not the owner.

(4) His Majesty may, by Order in Council, declare that this section shall apply to any monument specified in the Order which appears to His Majesty to be an ancient monument within the meaning of the Act, and on any such Order being made this section shall apply accordingly.

Ancient Monuments Board and Inspectors.

15.—(1) The Commissioners of Works shall constitute an Advisory Board under the name of the Ancient Monuments Board, consisting of members representing the bodies named in the First Schedule to this Act, and such other members as the Commissioners of Works may appoint; and may, if and when they think it desirable to do so, constitute separate advisory boards for Scotland and Wales, and, in such case, the obligation to appoint members representing the bodies named in the First Schedule to this Act shall, so far as those bodies are bodies whose activities are confined to England, Scotland, or Wales, be construed distributively.

Ancient Monu-
ments Board.

(2) His Majesty may, by Order in Council, alter the First Schedule to this Act.

(3) The Ancient Monuments Board may, if so requested by the owner of an ancient monument, give advice, free of charge, except for out of pocket expenses, with reference to the treatment thereof.

16.—(1) The Commissioners of Works, with the consent of the Treasury, shall appoint one or more inspectors of ancient monuments, and it shall be the duty of those inspectors to report to the Commissioners of Works on the condition of ancient monuments and on the best mode of preserving them.

Inspectors of
ancient monu-
ments.

(2) There shall be paid, out of moneys provided by Parliament, to any inspectors so appointed, such remuneration and allowance for expenses as may be determined by the Treasury.

Advice and-
superinten-
dence by Com-
missioners of
Works.

17.—(1) The Commissioners of Works may, if they think fit, give advice with reference to the treatment of any ancient monument, and shall, as and when required, give that advice with reference to the treatment of any monument which is placed under their protection by virtue of a Preservation Order.

(2) The Commissioners of Works may also, if in their opinion it is advisable, superintend any work in connection with any ancient monument if invited to do so by the owner, and shall superintend any such work, whether required to do so by the owner or not, in connection with any monument which is placed under their protection by virtue of a Preservation Order if in their opinion it is advisable.

(3) Any such advice and superintendence shall be given free of charge, except that a charge may be made for out-of-pocket expenses in the case of monuments which are not placed under the protection of the Commissioners by virtue of a Preservation Order.

Miscellaneous.

Relaxation of
byelaws.

18. Where it appears to the council of a borough or a district, which expression in this Act shall include the Common Council of the City of London, that the erection of buildings of a style of architecture in harmony with other buildings of artistic merit existing in the locality is impeded in consequence of any byelaws with respect to new streets or buildings in force in the borough or district, the council may, with the consent of the Local Government Board, relax the byelaws so far as may be necessary to allow the erection of such buildings, provided that the council is satisfied that such buildings can be erected with due regard to safety from fire and to sanitation: Provided also that no byelaws in force in the City of London shall be relaxed under this section except such as are administered by the Common Council of the City of London.

Power of
councils to
make byelaws
regulating ad-
vertisements.
7 Edw. 7. c. 27.

19. The Advertisements Regulation Act, 1907, shall be construed as if the powers of the local authority as defined by that Act included a power to make byelaws prohibiting or restricting the display of advertisements or notices of such a nature or in such a manner as to be detrimental to the amenities of any ancient monument specified in the byelaw. Any power to make byelaws given by this section shall be in addition to, and not in derogation of, the powers to make byelaws given by the Advertisements Regulation Act, 1907, or by any other Act.

Incorporation
of Commis-
sioners of

20.—(1) For the purposes of this Act, the Commissioners of Works shall be a body corporate by that name and shall have

perpetual succession and a common seal, and may acquire by gift, will or otherwise, and hold without licence in mortmain, any land or estate or interest in land. Works for purposes of Act, &c.

(2) Any conveyance, appointment, devise or bequest of land or any estate or interest in land under this Act to the Commissioners of Works or a local authority shall not be deemed to be a conveyance, appointment, devise or bequest to a charitable use within the meaning of the Acts relating to charitable uses.

21.—(1) The council of every county and borough and the Common Council of the City of London shall be a local authority within the meaning of this Act. Local authorities.

(2) The expenses of a local authority under this Act shall be defrayed, in the case of the London County Council as payments for general county purposes, in the case of any other county council out of the county fund, and in the case of a borough council out of the borough fund or borough rate, or if no borough rate is levied, out of a separate rate to be made, assessed, and levied in like manner as a borough rate, and in the case of the City of London out of the general rate, and a local authority may borrow for the purposes of this Act in the case of a county council, as for the purposes of the Local Government Act, 1888, and in the case of a borough council, as for the purposes of the Public Health Acts; but the money borrowed by a borough council shall be borrowed on the security of the fund or rate out of which the expenses of the council under this Act are payable. 51 & 52 Vict. c. 41.

22. In this Act the expression “monument” includes any structure or erection, other than an ecclesiastical building which is for the time being used for ecclesiastical purposes; and the expression “ancient monument” includes any monument specified in the schedule to the Ancient Monuments Protection Act, 1882, and any other monuments or things which, in the opinion of the Commissioners of Works, are of a like character, and any monument or part or remains of a monument, the preservation of which is a matter of public interest by reason of the historic, architectural, traditional, artistic, or archæological interest attaching thereto, and the site of any such monument, or of any remains thereof; and any part of the adjoining land which may be required for the purpose of fencing, covering in, or otherwise preserving the monument from injury, and also includes the means of access thereto. Definition of ancient monument. 45 & 46 Vict. c. 73.

23.—(1) A duplicate of any report made to the Commissioners of Works by any inspector under this Act, or by the Ancient Monuments Board constituted under this Act, with reference to an ancient monument in Scotland, shall be forwarded to the Board of Trustees for the National Galleries of Scotland, and the Commissioners of Works shall take into consideration any representations which may be made to them in relation to the monument by that Board. Special provision as to Scotland.

(2) In the application of this Act to Scotland, references to a borough shall be construed as references to a Royal or Parliamentary burgh; references to a district and the council thereof shall be construed as references to a county and the county council, and the expenses of a county council shall be defrayed out of the general purposes rate; references to the borough fund or borough rate shall be construed as references to the general improvement assessment; and references to the Local Government Board, the Local Government Act, 1888, and the Public Health Acts shall be respectively construed as references to the Local Government Board for Scotland, the Local Government (Scotland) Act, 1889, and the Public Health (Scotland) Act, 1897.

52 & 53 Vict.
c. 50.
60 & 61 Vict.
c. 38.
Repeal.

24. The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule: Provided that—

- (1) Any document referring to any Act or enactment hereby repealed shall be construed to refer to this Act or to the corresponding enactment of this Act:
- (2) Anything done under any Act repealed by this Act shall, for the purposes of this Act, be deemed to have been done under this Act:
- (3) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

52 & 53 Vict.
c. 63.

Short title and
application.

25.—(1) This Act may be cited as the Ancient Monuments Consolidation and Amendment Act, 1913.

(2) This Act shall not apply to Ireland.

SCHEDULES.

FIRST SCHEDULE.

The Royal Commission on Historic Monuments in England.
 The Royal Commission on Historic Monuments in Scotland.
 The Royal Commission on Historic Monuments in Wales.
 The Society of Antiquaries of London.
 The Society of Antiquaries of Scotland.
 The Royal Academy of Arts.
 The Royal Institute of British Architects.
 The Trustees of the British Museum.
 The Board of Education.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
45 & 46 Vict. c. 73.	The Ancient Monuments Protection Act, 1882.	The whole Act except so far as it relates to Ireland and except the Schedule.
63 & 64 Vict. c. 34.	The Ancient Monuments Protection Act, 1900.	The whole Act except so far as it relates to Ireland.
10 Edw. 7 & 1 Geo. 5. c. 3.	The Ancient Monuments Protection Act, 1910.	The whole Act except so far as it relates to Ireland.

CHAPTER 33.

An Act to promote Temperance in Scotland by conferring on the electors in prescribed areas control over the grant and renewal of certificates; by securing a later hour of opening for licensed premises; by amending the law relating to clubs; and by other provisions incidental thereto.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act shall, except as otherwise in this Act provided, come into operation on the expiration of eight years from the first day of June nineteen hundred and twelve.

Date of Act
coming into
operation.

2.—(1) If, in the manner hereinafter provided, a requisition demanding a poll under this Act in any area is found by the local authority to have been duly signed, the local authority shall cause a poll of the electors in such area (hereinafter called "a poll") to be taken in accordance with the provisions of this Act.

Poll of electors
on resolutions
submitted.

(2) The questions to be submitted to the electors at a poll shall be the adoption in and for such area of (a) a no-change resolution, or (b) a limiting resolution, or (c) a no-licence resolution.